

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal in terms of
section 331 of the Code of Criminal
Procedure Act No.15 of 1979 and in terms of
High Courts of the Provinces (Special
Provisions) Act No. 19 of 1990.

Democratic Socialist Republic of Sri Lanka.

Plaintiff

Court of Appeal Case No.:

CA HCC 0084/24

Vs.

High Court of Puttalam Case No.:

HC 125/2021

George Shuwalitine D.Silva,
Wickremathilake *alias* Bantu Mama,
No.03, Tabbowa,
Puttalam.

Accused

AND NOW BETWEEN

George Shuwalitine D.Silva,
Wickremathilake *alias* Bantu Mama,
No.03, Tabbowa,
Puttalam.

Accused-Appellant

Vs.

Hon. Attorney General,
Attorney General's Department,
Colombo 12.

Respondent

Before: **B. Sasi Mahendran, J.**
 Amal Ranaraja, J.

Counsel: Neranjana Jayasinghe with Randunu Heellage and Imangi
Senerath for the Accused-Appellant.

Suharshie Herath, D.S.G. for the Respondent.

Argued on : 25.06.2025

Decided on: 18.07.2025

JUDGMENT

AMAL RANARAJA, J.

1. The Accused-Appellant (hereinafter referred to as the "Appellant") has been indicted in the *High Court of Puttalam* in High Court case no. HC 125/2021.
2. The charges in the indictment are as follows;

Charge 01

That during the period between October 01, 2014 to September 30, 2015, at *Tabbowa*, in the *District of Puttalam*, within the jurisdiction of this Court, the accused-appellant did commit the offence of rape, on a minor, and thereby committed an offence punishable under section 364(3) read

with section 364(A)(1) of the Penal Code as amended by Act No.22 of 1995.

Charge 02

That during the same period and same place as mentioned above, but at a time other than the time mentioned above, the accused-appellant did commit the offence of rape, on the said minor, and thereby committed an offence punishable under section 364(3) read with section 364(A)(1) of the Penal Code as amended by Act No.22 of 1995.

Charge 03

That during the same period and same place as mentioned above, but at a time other than the time mentioned in the 1st and 2nd charges above, the accused-appellant did commit the offence or rape, on the said minor, and thereby committed an offence punishable under section 364(3) read with section 364(A)(1) of the Penal Code as amended by Act No.22 of 1995.

3. At the conclusion of the trial, the Learned High Court Judge has convicted the appellant of the 1st charge and has sentenced the appellant as follows;

A term of 18 years' rigorous imprisonment and also imposed a fine of Rs. 25,000 with a term of 06 months in default.

4. The appellant has been acquitted of the 2nd and 3rd charges. The appellant aggrieved by the conviction and the disputed judgment

together with the sentencing order has preferred the instant appeal to this Court.

Case of the prosecution

5. PW01 has maintained that her mother, i.e. DW04, had an illicit affair with the appellant while she was still married to PW01's biological father. This revelation has reportedly caused great distress, culminating in the tragic suicide of PW01's biological father upon discovering the affair.
6. Following the death of her husband, PW01's mother [DW04], has married the appellant. Initially, DW04, the appellant and DW04's children from her previous marriage have lived together in the house of DW04's sister. After sometime, they have moved into a separate residence where PW01 occupied her own home.
7. One morning in 2014, at approximately 04.00 am, while PW01 was in her room, the appellant has entered the room and allegedly engaged in sexual intercourse with PW01 against her will. PW01 has stated that this was the only incident of such nature involving the appellant. At the time of the incident, PW01 has not informed the third party about it.
8. In 2016, the *Grama Niladari* of the area has visited PW01's household and is said to have inquired about the incident involving the appellant. Following this, the *Grama Niladari* has decided to make a formal complaint to the *Police*. As a result, necessary investigations

have been initiated and a statement of PW01 recorded. Subsequently, PW01 has been examined by a Judicial Medical Officer, i.e. PW08, Dr. S. Amararathne, and the medico-legal report compiled by PW08 marked 37-2.

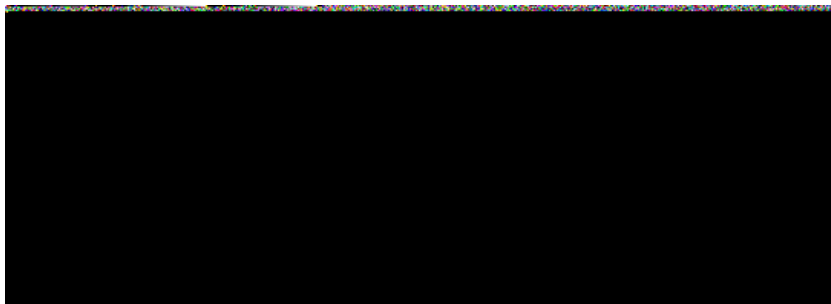
Case of the appellant

9. The appellant has consistently asserted that PW01 was engaged in an affair with a young man named *Ramesh*. It is the appellant's position that, after he and DW01, brought this affair to light, PW01, along with the relatives of her biological father and PW02, i.e. the *Grama Niladhari* of the area conspired to fabricate accusations against the appellant regarding the incident outlined in the charges.

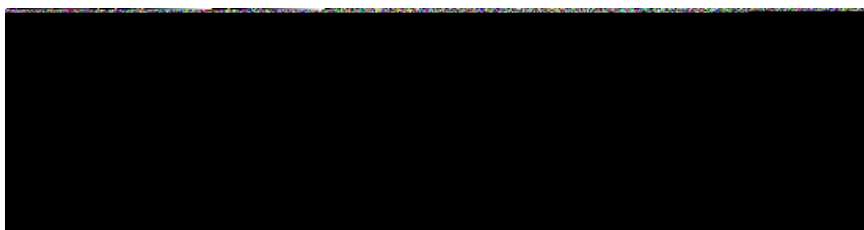
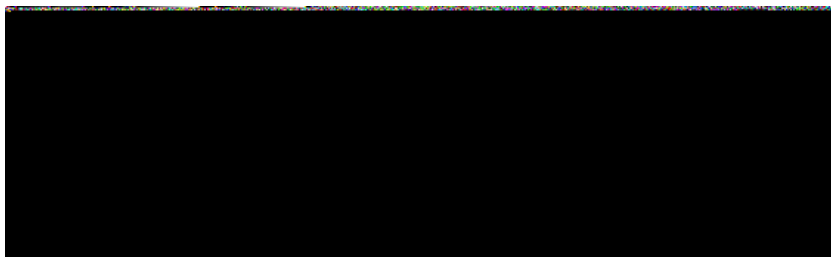
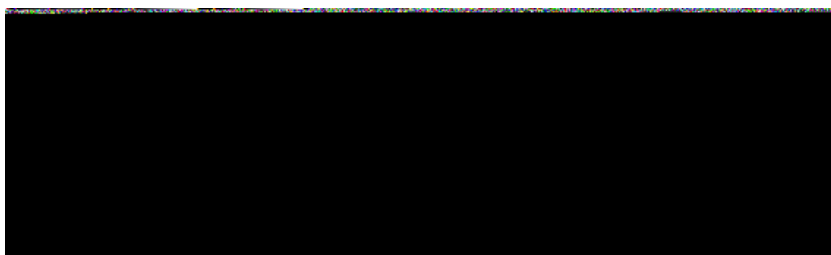
Grounds of appeal

10. When the matter was taken up for argument, the Learned Counsel of the appellant urged the following grounds of appeal;
 - i. Evidence of the prosecution witnesses, fails the test of credibility and the test of consistency.
 - ii. The Learned High Court Judge has rejected the evidence of the defence on unreasonable grounds.
11. PW01's account states that when she, her mother, her siblings, and the appellant moved into their new residence, the appellant allegedly engaged in sexual intercourse with her one day in 2014 at around 04.00 am in the room, where the former was sleeping in. During the course of

the cross-examination, she has confirmed that this incident has occurred only once, emphasising that the specific incident she referred to was the only time the appellant engaged in sexual intercourse with her.



[*vide* page 48 of the Brief]



[REDACTED]

[REDACTED]

[REDACTED]

[vide page 49 of the Brief]

[REDACTED]

[REDACTED]

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[*vide* page 50 of the Brief]

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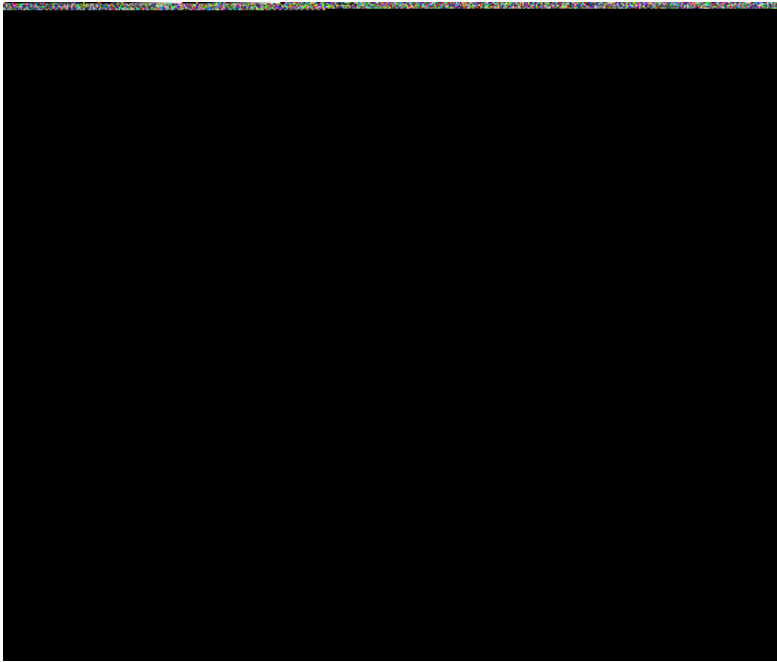
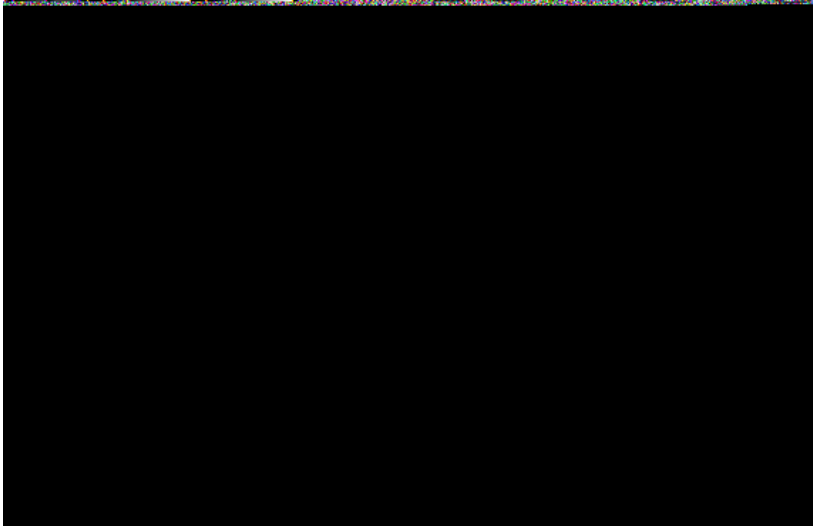
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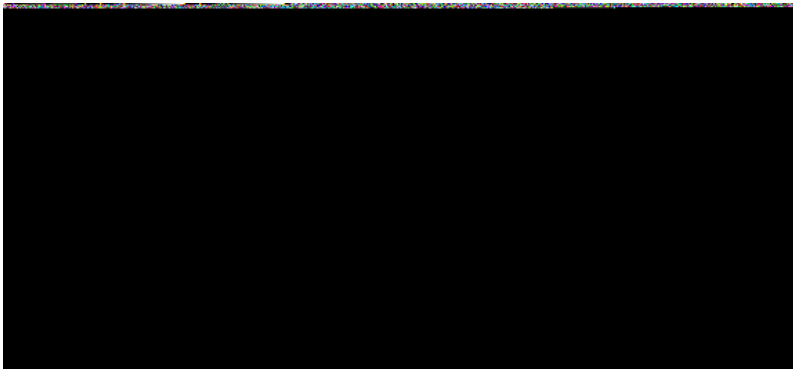
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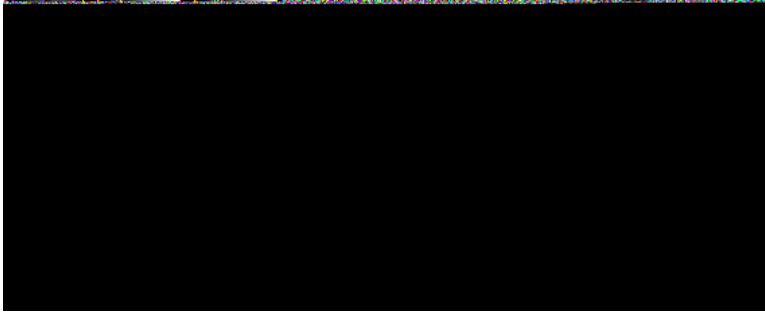
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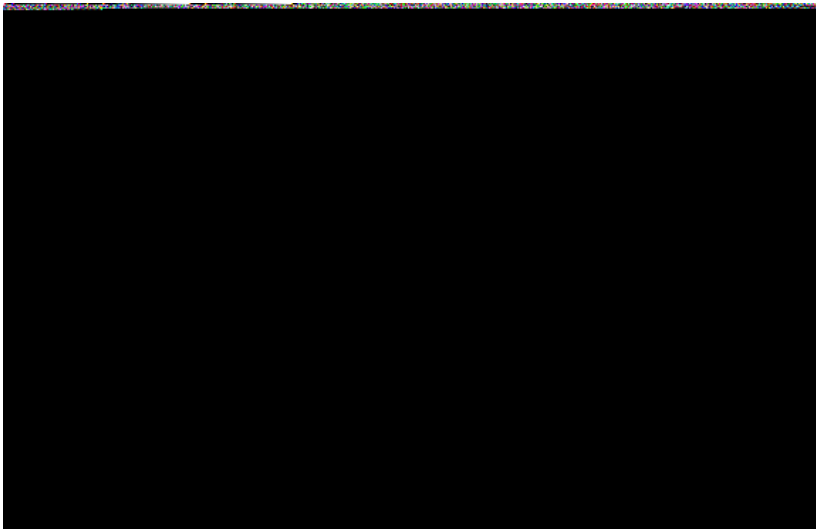
[*vide* pages 54 and 55 of the Brief]





[*vide* page 55 of the Brief]

Evidence of proceedings from the cross-examination of the appellant;



[*vide* page 91 of the Brief]

12. Prior to her testimony in Court, PW01 has provided a detailed account of the incident/incidents in the form of a short history given by a patient. PW08, the Judicial Medical Officer who examined her has recorded this account in writing. In her narrative to the doctor, PW01 has stated that the appellant had engaged in sexual intercourse with her on several occasions, the last of which had purportedly occurred three weeks prior to her examination in 2016. Additionally, she has reported that the appellant had engaged in sexual activity involving the insertion of his penis into her rectum and her mouth. PW01 has further

alleged that these acts occurred after she returned home from school in the afternoon.

13. Following the examination, PW08, *Dr. S Amararathne* has concluded that there were indications of sexual abuse consistent with the information detailed in PW01's patient history. PW08 has testified to substantiating such fact and confirmed that he recorded the brief history provided by PW01, the patient, as documented in the medico-legal report marked B7-2.
14. The discrepancies between the testimony and the account documented in the patient's history are strikingly evident. These discrepancies pertain to several critical aspects;
 - The nature of the alleged sexual abuse,
 - the number of times PW01 claims to have been subject to such abuse by the appellant,
 - and, the time of the day when these incidents reportedly occurred.
15. Remarkably, the discrepancies in these accounts have not been satisfactorily explained. It is essential to recognise that the age of PW01, as well as the time lapse between the events and the statement provided to the investigators along with the timeline of the testimony given in Court do not adequately justify these striking inconsistencies. Testimony regarding such traumatic experiences should in theory maintain a certain level of coherence. Given the extraordinary nature of the experiences described, these obvious lapses in detail cannot be dismissed as mere coincidences or typical errors.

16. The unaddressed discrepancies raised substantial concerns about the reliability of PW01's testimony. It is important to consider such fact carefully in order to ensure a fair assessment of the prosecution's case.
17. In a criminal case, it is the prosecution's duty to prove its case beyond a reasonable doubt. This high standard of proof is a fundamental principle of the justice system, designed to protect the accused from wrongful conviction and ensure that only those who are truly guilty are punished. When the prosecution fails to present sufficient evidence to meet this standard, the benefit of the doubt must be afforded to the accused.
18. In the present case, the prosecution has not successfully fulfilled its obligation. The evidence presented through PW01, lacks the necessary weight and credibility required to establish guilt beyond a reasonable doubt. This shortfall undermines the integrity of the prosecution's case.
19. Furthermore, a thorough examination of the evidence, or the lack of it, reveals striking gaps and inconsistencies that further weaken the prosecution's argument. Such shortcomings warrant a reconsideration of the case emphasising the need for caution before reaching a verdict that could irreparably impact the life of the appellant. Due to the prosecution's failure to provide compelling evidence that meets the standard of proof beyond a reasonable doubt it is only just and reasonable to decide in favour of the appellant.
20. The facts being so, the necessity does not arise to determine the 2nd ground of appeal urged by the appellant.

21. Due to the reasons set out above, I am inclined to interfere with the conviction and the disputed judgment together with the sentencing order. I set aside the conviction, the disputed judgment and the sentencing order. I acquit the appellant of the charge convicted of.

Appeal allowed.

I make no order regarding costs.

22. I direct the Registrar of this Court to send a copy of this judgment to the *High Court of Puttalam* for necessary compliance.

Judge of the Court of Appeal

B. SASI MAHENDRAN, J.

I agree,

Judge of the Court of Appeal